

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT, and THIRD-PARTY COMPLAINANT

v.

SAMSUNG ELECTRONICS COMPANY, LTD, SAMSUNG SDS

GLOBAL SCL ASIA PACIFIC PTE LTD and SAMSUNG

LOGITECH COMPANY, LIMITED,

THIRD-PARTY RESPONDENTS.

JOINT STATUS REPORT

Pursuant to the August 13, 2025 Memorandum Order (“Order”), Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, COSCO Shipping Lines Co., Ltd. (“COSCO”) (each a “Party” and collectively the “Parties”), submit this Joint Status Report. The Parties, by their respective undersigned counsel, have conferred and have endeavored to resolve any disagreements related to discovery deadlines. The Parties met and conferred on August 11 and August 21, 2025 about discovery and scheduling. The Parties also had numerous discussions which

resulted in COSCO's and SEA's submission of a joint motion for a protective order on August 14, 2025, which the Presiding Officer granted with modifications on August 15, 2025. To date, the Parties have reached agreement on all but one aspect of an ESI protocol for the production of documents in this matter and aim to resolve this one issue by end of day, August 22, 2025. The Parties provide below the status of document production and the difficulty of completing document and other discovery by the currently scheduled dates.

I. Documents Produced by the Parties

In response to Respondent's request for additional time to complete document production, the Order granted the Parties a thirteen (13) day extension, moving the deadline from August 15, 2025, to August 28, 2025. Since the extension of the August 7, 2025, discovery schedule pursuant to the Order, the Parties have continued to engage in document production

A. SEA's Statement of Progress.

- On August 7, SEA produced 93,525 documents, comprising of 345,007 pages.
- On August 19, SEA produced 18,638 documents comprising of 87,247 pages.

From August 7, 2025, to present, SEA has produced a total of 112,163 documents, comprising of 432,254 pages. The data from all SEA custodians in connection with this dispute are in the possession of counsel for continued relevancy review in connection with production. SEA also confirms that privileged documents have been removed from these productions.

In regard to the number of pages of documents remaining for production, at the current estimate there remains over 100,000 documents being considered for relevancy. The estimated page totals for these additional documents are over 700,000 pages. SEA notes that in the Order, there is a reference to SEA stating at the conference that it anticipated providing another 50,000 to 100,000 pages of documents. The reference at the hearing was meant to address the number of

additional documents that may be produced as opposed to the page count as the page count is substantially larger.

While SEA is not addressing an enlargement of the entirety of the schedule here, mindful that the Order reminds the parties that a separate motion is necessary which impacts all of the deadline dates in the case, it supports the Presiding Officer's consideration of extending the deadline for document production beyond August 28, 2025. COSCO's representations here, and conversations during the meet and confer calls, make plain that COSCO will not be in a position to complete the production of documents by August 28, let alone September 15. SEA supports a joint document production deadline, and consents to the suggested date by COSCO in the Parties' joint concluding Section IV.

B. COSCO's Statement of Progress.

- On July 18, 2025, COSCO produced 3,715 documents, comprising of 6,583 pages.
- On August 15, 2025, COSCO produced 481 documents, comprising of 3,015 pages.

From July 18, 2025, to August 20, 2025, COSCO produced a total of 4,196 documents, comprising of 9,598 pages. COSCO is in the process of reviewing approximately 154,000 files, including invoices, bills of lading, sea waybills, intermodal in-transit notices, arrival notices and similar documents.

In addition, COSCO has so far collected, and is in the process of transmitting, approximately 500 gigabytes of additional electronic data, which must be processed, and then reviewed for responsiveness and privilege before production. Obviously, 500 gigabytes of data is a massive amount of data, which likely equates to hundreds of thousands, if not millions of documents. *See, e.g., Dale v. Deutsche Telekom AG*, No. 22 C 3189, 2024 WL 4416761, at *4 (N.D. Ill. Oct. 4, 2024) (characterizing the amount of pages from 442 gigabytes of data as

“staggering” and collecting cases recognizing that such a quantity of data is likely over one million documents and millions of pages). That data is still being transmitted for processing, before any review for relevance and privilege can occur, so COSCO cannot specifically identify the number of documents or pages at present.

COSCO is still collecting additional documents from other sources, which will also need to be processed and reviewed. Due to SEA’s all-encompassing, broad allegations and requests for documents, COSCO has collected, and is continuing to collect, documents from different business units, with different data systems, and archived data. There is no single common server or central repository from which all documents can be obtained. Moreover, some documents are not in English, increasing the time required for processing and review.

COSCO is working diligently and will continue to produce documents on a rolling basis. Yet, even with daily work on this transfer of data and production issue, COSCO cannot meet the current deadline of August 28, 2025, to complete production of documents. Until COSCO has been able to process and complete more review of data collected, it is nearly impossible for COSCO to provide a date certain by which it can finalize all production. COSCO understands that the Presiding Officer has reminded the parties that requests for action, including enlargement of time, must be made by motion, rather than in a joint status report, and as discussed below, is conferring with SEA regarding the filing of such motion. Nevertheless, in the interest of transparency, COSCO states that, based on its collection and review to date, it will need more time than an extension to September 15, 2025, to complete document processing, review, and production.

II. Anticipated Number of Depositions for Each Part and Any Obstacles to Scheduling Those Depositions

A. SEA's Statement.

COSCO's production of documents and data to date is modest in both scope and volume. As such, SEA has proactively undertaken a comprehensive review of its own production of documents and has identified potential COSCO witnesses located in China, Korea, and across the United States, including Houston, Long Beach, and New Jersey. The current estimate for depositions is in and around 10, including a corporate designation witness. However, SEA cannot notice depositions until there is a reasonable opportunity provided to review and assess COSCO's documents and in particular the emails and communications between COSCO representatives. Time and resources would be wasted to rush deposition notices in and around the current commencement on August 28, 2025, as the majority of COSCO documents have not been produced and must also be assessed to determine the proper number of deponents.

COSCO's Statement.

Based on present information, COSCO estimates that it will depose between 7-10 SEA personnel, all of whom COSCO understands are located in the United States, albeit in various locations, and will also conduct an organization deposition of SEA. COSCO also estimates that it expects to depose several employees of other Samsung entities who are located outside the United States.

IV. Remaining Discovery Matters

Pursuant to the Order, document production is set to close on August 28, 2025, and the parties are to begin depositions of fact witnesses on the same day. The Parties respectfully submit that they will, by separate motion, request the extension of the present document production deadline to October 17, 2025, further proposing that a joint status report reflecting the progress of

document production be filed no later than September 15, 2025, and jointly propose a plan for the remaining discovery-related deadlines in this matter.

Respectfully Submitted,

Dated: August 21, 2025

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